

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED**

2260 N Street, Merced
627 W. 21st Street, Merced
1159 G Street, Los Banos

Wednesday, July 15, 2026

Tentative rulings are provided for the following courtrooms and assigned Judicial Officers with scheduled civil matters:

Courtroom 8 – Hon. Stephanie L. Jamieson

Courtroom 9 – Commissioner David Foster

Courtroom 12 – Hon. Jennifer O. Trimble

Parties who wish to appear remotely must contact the clerk of the court at (209) 725-4111 to seek permission and arrange for a remote appearance.

IMPORTANT: Court reporters will NOT be provided; parties must make their own arrangements. Electronic recording is available in certain courtrooms and may only be activated upon request.

The tentative rulings for specific calendars follow:

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Civil Law and Motion Tentative Rulings
Hon. Stephanie L. Jamieson
Courtroom 8

627 W. 21st Street, Merced

Wednesday, July 15, 2026
8:15 a.m.

The following tentative rulings shall become the ruling of the court unless a party gives notice of intention to appear as follows:

1. You must call (209) 725-4240 to notify the court of your intent to appear.
2. You must give notice to all other parties before 4:00 p.m. of your intent to appear.

Per California Rules of Court, rule 3.1308(a)(1), failure to do both items 1 and 2 will result in no oral argument. *Note:* Notifying CourtCall (the court's telephonic appearance provider) of your intent to appear does not satisfy the requirement of notifying the court.

Case No.	Title / Description
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23CV-01931	Elizabeth Gonzalez vs Merced AR, et al.
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Order to Show Cause Re: Dismissal

VACATED. On July 9, 2026, Counsel for Plaintiff filed a declaration regarding dismissal. The court finds the declaration sufficient as to why this matter should not be dismissed.

24CV-01683	Gabriel Zamorano Lugo, et al. vs Auto Resources, Inc., et al.
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Motion to Compel Arbitration Pursuant to Cal Code Civ Proc 1281.2, 1281.4, and 1281.7; to Stay the Proceedings Pending Completion of Arbitration

The motion to compel arbitration is GRANTED.

The request to stay this action is GRANTED.

When a motion to compel arbitration is filed and accompanied by prima facie evidence of a written agreement to arbitrate the controversy, the court itself must determine: (1)

whether the agreement exists, and (2) if any defense to its enforcement is raised, whether it is enforceable. The moving party bears the burden of proving the existence of an arbitration agreement by a preponderance of the evidence. The party claiming a defense bears the same burden as to the defense. (*Rosenthal v. Great Western Fin. Securities Corp.* (1996) 14 Cal.4th 394, 413-414.)

The moving party “can meet its initial burden by attaching to the [motion] a copy of the arbitration agreement purporting to bear the [opposing party's] signature.” (*Bannister v. Marinidence Opco, LLC* (2021) 64 Cal.App.5th 541.)

By attaching the arbitration agreement as Exhibit 2, to the Declaration of Jameel Taha, with Apodaca’s handwritten signature, Auto Resources has established a prima facie case that an enforceable agreement to arbitrate exists.

Unless there is a dispute over authenticity, the mere recitation of the terms is sufficient for a party to move to compel arbitration. (*Sprunk v. Prisma LLC* (2017) 14 Cal.App.5th 785, 793.) Here, Apodaca does not challenge the existence of the arbitration agreement or her signature.

Apodaca challenges the motion on the basis ACIC is not a party to the arbitration agreement. As argued by Auto Resources, it is seeking to enforce the arbitration agreement against Apodaca and not ACIC. ACIC was found to have a right to interplead the funds, has deposited the funds with the court, and has been dismissed from this case. The issue that remains is the resolution of the underlying dispute between Apodaca and Auto Resources, which does not include ACIC. As to the interplead funds, although the underlying dispute may be subject to arbitration, the court maintains jurisdiction over the deposited funds.

Apodaca also challenges the arbitration agreement as unconscionable. Here, there are some aspects of procedural unconscionability. However, a finding of procedural unconscionability “does not mean that the contract will not be enforced, but rather that the courts will scrutinize the substantive terms of the contract to ensure they are not manifestly unfair or one-sided.” (*Baltazar v. Forever 21, Inc.*, (2016) 62 Cal.4th 1237, 1244.) In other words, because procedural unconscionability has been found, the analysis turns on consideration of the substantive unconscionability prong.

The substantive inquiry considers whether the overall bargain is overly harsh or unreasonably one sided. (*Armendariz v. Foundation Health Psychcare Services, Inc.* (2000) 24 Cal.4th 83, 114.)

Here, the terms of the arbitration agreement are not so harsh, unreasonable, or unfairly one sided as to render the agreement unconscionable. The arbitration agreement applies to all parties, provides for a neutral arbitrator that must follow the law, provides adequate discovery, and provides types of relief otherwise available in this court.

The court declines to order arbitration with JAMS. The arbitration agreement is clear in that absent an agreement between the parties, either AAA or NAM are to be the arbitration organization. However, Auto Resources is to pay for costs unique to arbitration.

This action is stayed pending arbitration.

An arbitration status hearing is set for Tuesday, January 13, 2027, at 8:15 a.m. in Courtroom 8.

Auto Resources, as prevailing party, is ordered to prepare an order consistent with this order, to be filed with this court within five (5) days.

25CV-03796 Manuel Valencia, et al. vs Fire Insurance Exchange Insurance Company

Motion for Summary Judgment

Defendant's unopposed motion for summary judgment is GRANTED.

Upon consideration of all the evidence set forth in the moving papers the court finds that there is no triable issue of material fact and Defendant is entitled to judgment as a matter of law.

Defendant filed a separate statement of undisputed material facts, supported by admissible evidence, containing undisputed material facts that establish Plaintiffs' claims are barred by failing to file their lawsuit within the one-year provision of their policy.

This shifts the burden to Plaintiffs to show the existence of one or more triable issues of material fact. (Code Civ. Proc., § 437c, subd. (p)(2).) By not filing any opposition, including a separate statement, Plaintiffs have failed to meet their burden on this motion.

Defendant is ordered to prepare and file a proposed order and judgment consistent with this order, to be filed with this court within five (5) days.

25CV-05313 Brett Jones vs General Motors, LLC

Demurrer to Plaintiff's First Amended Complaint

Defendant's demurrer to Plaintiff's fifth cause of action is SUSTAINED WITH LEAVE TO AMEND on the basis of failure to state facts sufficient to constitute a cause of action.

Here, Plaintiff does not allege enough facts to support a fraudulent inducement concealment cause of action. For example and not exhaustive, the complaint (1) fails to identify the specific selling dealership that is alleged to be GM's authorized dealership, (2) fails to allege sufficient facts identifying the specific marketing statements that were misleading and that were relied upon by Plaintiff, (3) fails to allege sufficient facts regarding dealership personnel, conversations, or content of omissions at the point of sale, and (4) fails to allege sufficient facts tying the alleged authorized dealership's specific acts to GM beyond conveying information from GM to prospective purchasers.

Plaintiff is to file an amended complaint within ten (10) days of this court's order.

Motion to Strike

The court notes that on July 6, 2026, Plaintiff filed an opposition to Defendant's April 20, 2026, motion to strike. On July 8, 2026, Defendant filed a reply to the opposition. Plaintiff filed a first amended complaint on May 18, 2026, rendering the April 20, 2026, demurrer and motion to strike moot. Defendant then filed a demurer to the first amended complaint on June 9, 2026. However, Defendant did not file a new motion to strike based on the first amended complaint. As such, there is no proper motion to strike pending before the court.

25CV-05980

Velocity Investments, LLC vs Abundio Avalos

Order to Show Cause Re: Sanctions Plaintiff Counsel and Defendant FTA at CMC on 6/8/2026

Appearance required.

26CV-00869

Javier Alvarado vs Central Valley Opportunity Center, Incorporated

Motion for Judgment on the Pleadings

The motion for judgment on the pleadings is DENIED.

The request for judicial notice is DENIED as to Exhibits A, B, and E, as the truth or interpretation of the documents are disputed.

The request for judicial notice is GRANTED as to Exhibits C and D, but only as to the existence of the documents and not the truth or interpretation of the contents as they are disputed.

The request for judicial notice of Defendant's and Plaintiff's counsel's website is DENIED as it is not relevant at this stage.

Plaintiff's objections to the Declaration of Bryan B. Miller are OVERRULED.

Plaintiff's objections to the Declaration of Custodian of Records are OVERRULED.

"A motion for judgment on the pleadings performs the same function as a general demurrer, and hence attacks only defects disclosed on the face of the pleadings or by matters that can be judicially noticed." (*Cloud v. Northrop Grumman Corp.* (1998) 67 Cal.App.4th 995, 999; see also *Templo v. State of California* (2018) 24 Cal.App.5th 730, 735 [motion for judgment on the pleadings is equivalent to a demurrer].)

"[J]udgment on the pleadings must be denied where there are material factual issues that require evidentiary resolution." (*Schabarum v. California Legislature* (1998) 60 Cal.App.4th 1205, 1216.)

Defendant contends that the prior class settlement in *Rodriguez v. Central Valley Opportunity Center, Incorporated*, Merced Superior Court Case No. 22CV-01358, bars this action based on res judicata. In support, Defendant requests judicial notice of certain

documents, that if the truth or interpretation of the matter asserted therein is accepted, would prove Plaintiff's claims are precluded. Of those documents, the truth and interpretation of the contents of Exhibits A, B, and E are disputed by Plaintiff. Further, the interpretation and legal effect of Exhibits C and D are also disputed by Plaintiff. These are factual disputes that require evidentiary resolution.

This leaves the motion for judgment on the pleadings to challenge the deficiency of the complaint on its face.

Here, accepting Plaintiff's allegations as true, Plaintiff has alleged facts sufficient to constitute each cause of action. Plaintiff alleges he was employed through October 20, 2023. Plaintiff alleges he was a non-exempt employee entitled to wages, overtime, meal and rest period premiums, unreimbursed expenses, and penalties. Plaintiff alleges Defendant failed to pay all wages, failed to provide compliant meal and rest periods, failed to pay final wages, failed to reimburse business expenses, and engaged in unlawful business practices. As Defendant's evidence rebutting those allegations will not be considered for the motion for judgment on the pleadings as they require evidentiary resolution, those allegations are sufficient at this stage.

Accordingly, Defendant's motion is denied.

26CV-02506 Laura Emery vs Monique Garza

Order to Show Cause re: Restraining Order

Appearance required.

26CV-02887 Petition of: Ruby Mouton

Order to Show Cause Re: Name Change

Appearance required.

26CV-03267 In the Matter of: Inspection of 7238 Almond Ave., Winton, CA, 95388

Application for Inspection Warrant and Abatement Order

The application for inspection warrant and abatement order is GRANTED.

Based on the Declaration of Code Enforcement Officer Reeder, and the attached exhibits thereto, the court finds good cause to grant the application for inspection warrant.

The court will sign the order lodged with the court on June 8, 2026.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Limited Civil
Judge Pro Tem Peter MacLaren
Courtroom 9

627 W. 21st Street, Merced

Wednesday, July 15, 2026
10:00 a.m.

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Case No.	Title / Description
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24CV-00700	Wells Fargo Bank, N.A. vs. Jose E Vega
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Status Review of Settlement

Appearance required.

Order to Show Cause Re: Sanctions as to Plaintiff's Attorney Joslyn Hillberg and the Defendant for Failure to Appear at the Status Review Hearing on April 9, 2026

Appearance required.

25CV-01353	Synchrony Bank vs. Laura Fowler
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Court Trial

Appearance required.

25CV-05602 Wells Fargo Bank, NA vs. Trina Underwood

Review Hearing – Status of Settlement

Appearance required. If notice of settlement or a request for dismissal is filed, the hearing will be vacated.

25CV-06252 Wells Fargo Bank, N.A. vs. Victoria Ramirez

Motion for Summary Judgment

The Motion for Summary Judgment is GRANTED. Plaintiff's evidence and undisputed facts establish a prima facie case that Plaintiff will prevail at trial. This shifted the burden of production to Defendant. Defendant has failed to provide admissible evidence establishing a triable issue of material fact. Accordingly, the motion for summary judgment is GRANTED.

25CV-06694 [Parties' names withheld pursuant to CCP § 1161.2(a)(1)]

Status of Settlement

Appearance required.

26CV-02970 [Parties' names withheld pursuant to CCP § 1161.2(a)(1)]

Court Trial: Unlawful Detainer

Appearance required.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Limited Civil
Temporary Judge Alexandria Carl
Courtroom 9

627 W. 21st Street, Merced

Wednesday, July 15, 2026
1:30 p.m.

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Case No.	Title / Description
25CV-02050	LVNV Funding LLC vs. Maria Mello
Court Trial	
Appearance required.	
25CV-02892	Lobel Financial Corp vs. John Mendez
Court Trial	
Appearance required.	
25CV-03142	CU Revest, LLC vs. Adriana Solis
Court Trial	
Appearance required.	

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Unlimited Civil
Hon. Mark Bacciarini
Courtroom 10

627 W. 21st Street, Merced

Wednesday, July 15, 2026
8:15 a.m.

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Case No.	Title / Description
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22CV-03409	Agustin Garcia Hernandez, et al. vs Dan Erickson, et al.
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Further Proceedings Status of Judicial Reassignment

This matter will not be subject to judicial reassignment and will remain in Courtroom 10.

Motions in Limine

Continued to July 29, 2026, at 8:15 a.m. in Courtroom 10.

Motion to Compel Further Responses to Special Interrogatories, Set Two; Request for Sanctions in the Amount of \$1,577.97

Continued to July 29, 2026, at 8:15 a.m. in Courtroom 10.

Motion to Compel Further Responses to Requests for Admissions, Set Two; Request for Sanctions in the amount of \$1,577.97

Continued to July 29, 2026, at 8:15 a.m. in Courtroom 10.

Motion to Quash Plaintiff's Notice in Lieu of Subpoena

Continued to July 29, 2026, at 8:15 a.m. in Courtroom 10.
